

**CUI**  
**SOURCE SELECTION INFORMATION – SEE FAR 2.101 AND 3.104**

**Justification for Other Than Full and Open Competition**

**DANTES MTEP, DANTES.FY19-25**

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**Choose the funding level for this J&A Document:**

[REDACTED]

**Contracting Activity:** Defense Human Resources Activity (DHRA) Acquisition Management Directorate (AMD)

**Center/Office/Requirement Title:** The Defense Support Service Center (DSSC), Defense Activity for Non-Traditional Education Support (DANTES), Military Training Evaluation Program (MTEP)

**Authority (include full title):** 10 U.S.C. 3204(c)(1) – Use of Procedures other than Competitive Procedures, FAR 6.302-1 – Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements

**Estimated Contract Cost (including options):** [REDACTED]

**J&A Type:** ☐ Class ☒ Individual

[REDACTED]

**Controlled by:** DHRA  
**Controlled by:** DHRA AMD  
**CUI Category:** SSEL  
**Dissemination Control:** FED ONLY  
**POC:** Jada Weaver, jada.a.weaver.civ@mail.mil

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**I. Agency/Contracting Activity.**

Agency: DANTES, 6490 Saufley Field Road, Pensacola, FL 32509

Contracting Activity: DHRA, 4800 Mark Center Dr, Alexandria, VA 22350

**II. Nature and/or description of the action being processed.**

DHRA requires the extension of a firm-fixed price and time and materials sole source service contract awarded to American Council on Education (ACE). The extension will provide continued military training and evaluation for DANTES for a six-month period. The modification is being done in accordance with FAR Clause 52.217-8 Option to Extend Services and will include the necessary Contract Line-Item Numbers. The value of the current contract is [REDACTED]. The six-month extension is [REDACTED], which will result in a new contract value of [REDACTED].

**III. Description of supplies/services required to meet agency needs (including the estimated value).**

DANTES requires continued contractor support to evaluate, document, and make college credit recommendations for learning, gained by service members as a result of military training and on-the-job experiences. DANTES operates this program in accordance with DODD 1322.08E and DODI 1322.25 Enclosure 3. Using prior learning assessments methodologies, nationally recognized frameworks, and academic rubrics, the contractor evaluates military training course planning documentation, instructional material, and qualitative/quantitative occupational data to assess the college level learning gained by service members from military training and on-the-job experiences. Based on this process, the contractor translates this learning into publicly available college credit recommendations for acceptance by educational institutions to satisfy vocational through graduate certificate and degree requirements. Credit recommendations are documented within an online catalog built on an open Application Programming Interface (API) framework on the Joint Services Transcript (JST). The final decision for award of academic credit for military training and occupational experiences are made solely at the discretion of individual colleges and universities, based on institutional and/or state higher education system prior learning assessments policies. The evaluation methods include virtual and on-site reviews conducted by teams of academic Subject Matter Experts that are current faculty members in the area under review.

DANTES has a continuing need for services and, as such, DHRA AMD intends to extend the military training and evaluation support under H9821020C0007 for an additional six-months in accordance with FAR 52.217-8 Option to Extend Services. The contract's period of performance ends on 31 March 2025. The current contract provided for a one-year base period, and four, twelve-month option periods. The fourth option period was exercised on 21 March 2024.

FAR 52.217-8 was included in the solicitation and resulting contract award; however, pricing for the extension was not evaluated necessitating this Justification and Approval. Exercising the FAR 52.217-8 option for six-months fulfills the requirement for continued military training and evaluations due to the ongoing need of the Government. This action directly supports follow-on procurement efforts and will afford a transition period.

The estimated value of this extension is [REDACTED] for six-months of continued support. This amount represents the support and quantity of evaluations determined to be the minimum quantity required until the follow-on contract is awarded. Fiscal Year '25 Operation and Maintenance (O&M) funds in the amount of [REDACTED] are anticipated.

**IV. Statutory authority permitting Other than Full and Open Competition.**

The contract award was made using the statutory authority derived from 10 U.S.C. 3204(c)(1), as implemented by FAR 6.302-1, Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements. The FAR 52.217-8 Option to Extend Services utilizes this same statutory authority.

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Historical procurements have been made to ACE under 10 U.S.C. 3204(c)(1), as implemented by FAR 6.302-1, Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements. This procurement was initially planned as a follow-on procurement with timelines for award assuming this approach; however, a new firm identified potential capabilities in response to the Sources Sought posted to advertise this requirement. As a result, the Contracting Officer modified the acquisition approach to a competitive procurement and the procurement timeline was adjusted to accommodate the additional steps for evaluation and award as well as necessary transition time. The modification to current contract H9821020C0007 will serve as a temporary solution to fulfill immediate requirements.

Moreover, in order for other potential sources to fulfill this immediate need through a competitive solicitation, an acquisition lead-time of 250+ days, to include the 120-day transition period, would be required. Accordingly, the most efficacious course of action is to issue a modification to contract H9821020C0007. Doing so will ensure continuation of the services to the military while allowing adequate time for DHRA AMD to finalize the competitive award.

In addition, ACE is a responsible source that currently understands the requirements of the Performance Work Statement and can fulfill the requirements on this interim basis, without interruption.

**V. Demonstration that the contractor's unique qualifications or nature of the acquisition requires the use of the authority cited above (applicability of authority).**

ACE is the only source capable of realistically performing this requirement without a break in services and without a transition period. This proposed action is for professional services whereby ACE already possesses personnel with the necessary qualifications and accesses. Maintaining this staff will save the Government the cost of additional training as well as time. As stated previously, to fulfill this immediate need through a competitive solicitation, an acquisition lead-time of 250+ days, to include a 120-day transition period, would be required. ACE has been performing the current effort and has the necessary management and expertise to continue to perform the services and provide continuity until the follow-on contract can be awarded and transitioned.

**VI. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable.**

Not applicable, as this is a request for extension of the current contract. DHRA AMD will comply with the procedures at FAR 5.201 and 6.302-1(d) for this Justification and Approval.

**VII. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.**

The Contracting Officer will determine a fair and reasonable price for the six-month extension utilizing proposal analysis techniques found at FAR 15.404-1, including comparison with historical prices and/or comparison to the Independent Government Cost Estimate.

**VIII. Description of the market research conducted and the results, or a statement of the reasons market research was not conducted.**

Solicitation H9821025RE002 is currently open and posted to the Government Point of Entry, [www.sam.gov](http://www.sam.gov). The solicitation is open to all firms under full and open competition. This approach was utilized in lieu of a sole-source procurement, as has been historically used for this effort, based upon market research performed and the interest expressed. Extending the current contract will enable sufficient time to award the follow-on contract and support the 120-day transition timeline.

ACE is the only company capable of performing this effort without a break in services providing continuity and stability for the Government while the follow-on contract is evaluated, awarded, and transitioned. ACE personnel are fully trained and can continue performance without interruption. While other firm(s) may be capable of performing the effort, they would require a 120-day transition period to ensure the necessary transfer of legacy information, hire necessary personnel, and perform all training requirements.

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**IX. Any other facts supporting the use of Other Than Full and Open Competition.**

Not applicable.

**X. List of sources, if any, that expressed interest in the acquisition.**

Not applicable. [REDACTED] expressed interest in the follow-on procurement.

**XI. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before making subsequent acquisitions for the supplies or services required.**

This procurement action is for a six-month extension to the current contract H9821020C0007 pursuant to FAR Clause 52.217-8 Option to Extend Services. Actions to increase future competition are already underway via the follow-on procurement solicited as full and open competition under solicitation H9821025RE0002. [REDACTED]  
[REDACTED]

**XII. Certification by the Contracting Officer.**

As evidenced by my signature above, I have determined this document to be both accurate and complete to the best of my knowledge and belief.

**XIII. Certification by the technical/requirements personnel.**

As evidenced by my signature above, I certify that any supporting data contained herein, which is my responsibility, is both accurate and complete.